

committing *Zina bil Jabr*. The said accused persons were also stated to have taken away Rs.69,000/- and gold ornaments weighing 5 *tolas* from the house of the complainant. The petitioner's claim is that respondent No. 3 had got married with him of her own choice, free will and consent on 14.07.2022 and *nikahnama* was registered with Metropolitan Corporation Sargodha wherein date of birth of the respondent No.3 was mentioned as 03.06.2004 according to which it is claimed that she was a *sui juris* person and had also attained the age of majority. The respondent No.3 had also appeared before Magistrate Section-30, Sargodha, where she had got recorded statement of her marriage with free consent. The claim of the respondent No.2 is that his sister is a minor having date of birth 28.09.2009 recorded in the school leaving certificate and certificate issued by the department where she was vaccinated as a child immediately after her birth.

4. On the last date of hearing, Investigation Officer was directed to record statement of respondent No.3 which although has been recorded, however, no conclusive result relating to age of the said respondent could be reached by him. As the verification of age of the respondent no. 3 was the material factor to determine whether she was *sui juris* and could give valid consent for marriage, today said respondent was asked in the Court whether she would consent to have herself medically examined to determine her age, to which she has flatly refused. Generally, where a person withholds the best available evidence, court may draw presumption against the said person in terms of Illustration (g) of Article 129 of the Qanun-e-

Shahadat Order, 1984 that the same would be unfavourable to the said person and had been withheld with sinister motive. This goes without saying that the said presumption is a rebuttable presumption but presently there is no material available with this Court to conclude that the respondent No. 3 was *sui juris*.

5. Marriage being a contract, it was to be seen whether parties thereto were adult, major and were fully aware of the consequences of the same to give consent. Although, a *sui juris* girl could enter into a marriage contract of her free will, choice and consent but the case of minor girl would be an exception to said general rule because a minor girl could neither make a valid proposal nor make a valid acceptance for marriage. Besides controversial issues could not be decided in Constitutional jurisdiction of this Court.

6. In these circumstances, this Court is not inclined to quash the F.I.R. registered against the petitioner due to reason that respondent No. 3 might be underage and not *sui juris*, which question could be determined by the learned Trial Court after recording of evidence and the same cannot be adjudicated by this Court in its Constitutional jurisdiction. For what has been discussed above, the instant constitutional petition is **dismissed**.

(Muzamil Akhtar Shabir)
Judge